DEVELOPMENT REVIEW COMMITTEE, PASCO COUNTY, FLORIDA

MINUTES

THE MINUTES WERE PREPARED IN AGENDA ORDER AS PUBLISHED AND NOT IN THE ORDER THE ITEMS WERE HEARD

OCTOBER 9, 2008

1:30 P.M. – Historic Pasco County Courthouse, Board Room, 2nd Floor
37918 Meridian Avenue, Dade City, FL 33525

DEVELOPMENT REVIEW COMMITTEE

John J. Gallagher
County Administrator
Michael Nurrenbrock
OMB Director
Daniel R. Johnson
Assistant County Administrator
(Public Services)
Bruce E. Kennedy, P.E.
Assistant County Administrator
(Utilities Services)
Bipin Parikh, P.E.
Assistant County Administrator
(Development Services)
Chris Williams
District School Board of Pasco County

ADVISORY STAFF

Cynthia M. Jolly, P.E.
Development Director
Samuel P. Steffey II
Growth Management Administrator
James C. Widman, P.E.
Engineering Services Director
Debra M. Zampetti
Zoning/Code Compliance
Administrator
Representative of the Clerk
of the Circuit Court

LEGAL COUNSEL

David A. Goldstein,
Senior Assistant County Attorney

CALL TO ORDER

Chairman Gallagher called the meeting to order at 1:30 p.m.

ROLL CALL

Ms. Elaine Hicks, Deputy Clerk, called the roll. All members were present.

Ms. Hicks swore in everyone who planned to present testimony.

MINUTES

There were no minutes for approval.

PUBLIC HEARINGS
VARIANCE PETITIONS
ZONING/CODE COMPLIANCE

P1 Terra Bella Commercial (VAC08-439), Variance Request - Section 402.6.b.1 of the Land Development Code-K & B Flagship-To allow the applicant to receive an extension to the existing LOS Certificate for the remaining commercial parcels within Terra Bella based upon the existing traffic study analysis previously approved by Pasco County. Location: On the northeast corner of the intersection of S.R. 54 and 20 Mile Level Road.
Memorandum GM09-025
Recommendation: Continuance Requested
Comm. Dist. 2

Frank Schlotter, Division Engineer, recommended the item be continued to October 23, at 1:30 p.m. in New Port Richey.

Mr. Ben Harrill, representative, agreed with the continuance.

MR. NURRENBROCK MOVED to continue the item to October 23, 2008, at 1:30 p.m. in New Port Richey.

Chairman Gallagher called on the motion; the vote was unanimous and the motion carried.

DEVELOPMENT REVIEW SERVICES - DEVELOPMENT REVIEW

P2 Class I, Circle K No. 1753 at S.R. 39 and Central Avenue (VAC08-436), Variance Requests -Circle K Stores, Inc.-Location: On the southwest corner of S.R. 39 and Central Avenue, approximately one-half mile north of County Line Road/Hillsborough County; Section 36, Township 26 S, Range 21 E
Memorandum DR08-1943
Recommendation: Approval with conditions
Comm. Dist. 1

Mr. Schlotter explained the variance request and gave the location of the property. Staff recommended approval with conditions.

Mr. Mike Flowers, representing the applicant, stated this was an existing Circle K site. The structure and canopy was built in the mid 70's. They wanted to make improvements to the access and general interior remodeling. There was a provision in the Code that stated if they made an adjustment that was 25% or more of the assessed value then they had to come into compliance with the landscaping. Due the assessed value of the store, the bathroom improvements alone would exceed that. Much of the existing site was paved and there was very little green space; they were going to landscape what they could. He was in agreement with Staff's recommendation with conditions.

MR. NURRENBROCK MOVED approval of Staff's recommendation with conditions.

Chairman Gallagher called on the motion; the vote was unanimous and the motion carried.

P3 Class II, Ashley Furniture (IIPR07-098), Variance Requests -Ashley Furniture Homestore/Kingsmere Furniture, LLC-Location: On the east side of U.S. 19 between Jasmine and Regency Park Boulevards (building formerly contained a Service Merchandise); Section 16, Township 25 S, Range 16 E
Memorandum DR08-1983
Recommendation: Approve
Comm. Dist. 5

Mr. Schlotter explained the applicant variances from the Landscaping and Irrigation ordinance for an existing 53,866-square-foot building. He gave the location of the property. Staff recommended approval with conditions.

Chairman Gallagher stated Mr. Nurrenbrock had a Conflict of Interest regarding this item. He filed the form of Conflict of Interest with the Clerk's Office and left the room.

Mr. Chris Blurten, the applicant's representative, explained the graphic that showed the existing parking for the existing commercial business to the south of the property in question, the small sidewalk to the east that was on the property line, and the area in the center. He explained the landscaping that they were going to put in on the south side of the building and the sidewalk to the east, and the additional landscaping buffer for the project

There was discussion regarding the requested variances, which were:

1. Landscaping and Buffering, to allow a reduction in the required ten-foot wide Type A buffer to its current extent on the southern side of the parcel.

2. Landscape Buffering, to allow a reduction in the required 15-foot wide Type B buffer to its current extent on the eastern and southern sides of the parcel.

3. Landscape Buffering, to allow a reduction in the required 15-foot wide Type D buffer to its current extent, 8.88 feet, and eliminate the berm on the western side of the parcel abutting U.S. 10.

4. Service Function Areas to use an existing truck well as a screen in lieu of masonry wall.

MR. PARIKH MOVED approval for Variance #2, with the direction of the Board that the applicant work with Staff and put as much landscape buffering around the retention pond.

Chairman Gallagher called on the motion; the vote was unanimous and the motion carried.

MR. PARIKH MOVED approval of Variance #3, with the direction of the Board that the applicant work with Staff to see how much additional landscaping that they could put in the berm that was 8.88 feet wide.

Chairman Gallagher called on the motion; the vote was unanimous and the motion carried.

MR. PARIKH MOVED approval Variance #4.

Chairman Gallagher called on the motion; the vote was unanimous and the motion carried.

MR. PARIKH MOVED approval of the remainder of the agenda item.

Chairman Gallagher called on the motion; the vote was unanimous and the motion carried.

P4 Class I, Radiant C-Store at Oakley Boulevard (VAC08-434), Variance Requests-The Radiant Group, LLC-Location: On the northeast corner of C.R. 54 (Wesley Chapel Boulevard) and Oakley Boulevard; Section 12, Township 26 S, Range 19 E Memorandum DR09-005
Recommendation: Approval with conditions
Comm. Dist. 1

Mr. Schlotter explained the request and gave the location of the property. The applicant requested the following words be added to Item 2.a under Analysis “upon the execution of a mutually agreed easement.”

Mr. Robin Kendall, representing the applicant, was in agreement with the words that were added.

MR. NURRENBROCK MOVED approval.

Chairman Gallagher called on the motion; the vote was unanimous and the motion carried.

Mr. Schlotter request “Dayflower Boulevard” be deleted and add the sentence “the driveway directly north to the subject property as depicted on the site plan” to Item B under Analysis.

Mr. Kendall stated he wanted a turn lane to the driveway to the north.

Mr. James Widman, Engineering Services Director, addressed the section of C.R. 54; showed and explained drawings of the access and the right in and right out; explained how the merge lane would be extended from the off ramp to Oakley Boulevard; and there being adequate right-of-way for future lanes.

Mr. Kendall was in agreement with Staff’s recommendation. He pointed out that they were working with the property owners to the north and east to come up with an agreement for the cross access points. He indicated they were also dealing with the drainage and the shared driveway issues.

MR. NURRENBROCK MOVED approval of Staff’s recommendation with changes.

Chairman Gallagher called on the motion; the vote was unanimous and the motion carried.

P5 Appeal of Administrative Determination of Camouflaged Personal Wireless Service Facility Meeting Tier Two Standards-Nicholas L. Meyers-The applicant is appealing an administrative determination that an application submitted by Alltel and Trinity College of Florida for a Tier Two, 120-foot, camouflaged Personal Wireless Service Facility meets the Tier Two standards. Location: On the east side of Welbilt Boulevard, approximately 550 feet north of the intersection of Welbilt Boulevard and Trinity Boulevard in Trinity; Section 26, Township 26 S, Range 16 E
Memorandum AA08-04
Recommendation: Approve
Comm. Dist. 5

Ms. Debra Zampetti, Zoning/Code Compliance Administrator, explained the request and gave the location of the property. Staff recommended the Board uphold Staff’s

determination that the proposed Camouflaged Personal Wireless Service Facility did met the Tier Two Standards.

Mr. Michael L. Meyers, the individual who filed the appeal, was not present.

Ms. Belinda Bodi, representing Alltel and Trinity College of Florida, explained the plans for the Wireless Service Facility.

There was general discussion regarding the location of the tower on the Trinity property and the surrounding area.

MR. NURRENBROCK MOVED to uphold Staff's recommendation.

Chairman Gallagher called on the motion; the vote was unanimous and the motion carried.

P6 CONSENT - Class II, Gateway Boulevard Commercial Site (IIPR08-011), Preliminary/Construction Site Plan and Stormwater Management Plan and Report-E-Wise Land Venture, LLC-Location: On the northeast and northwest corners of Gateway Boulevard and north of Wesley Chapel Boulevard; Section 12, Township 26 S, Range 19 E
Memorandum DR09-001
Recommendation: Approval with conditions
Comm. Dist. 1

Mr. Schlotter stated the applicant requested this item to be continued because they were going to revise the plan; therefore, Staff recommended that the project be withdrawn and be resubmitted.

The applicant's representative said they had a new tenant coming in and they were looking at redesigning, which was the reason they were requesting a continuance. She asked if they could get a continuance for a month so that they could decide whether they needed to withdraw. She did not want to withdraw this item without talking to the developer.

Ms. Cindy Jolly, Development Director, stated the variance could be continued to November 6, 2008.

Ms. Murray said she would have the problem resolved by then.

Mr. Adam Fireberg, representing the adjacent landowners, said he was told that the existing gateway, which was a temporary road, was going to be torn up and rebuilt per the specs of the DRI. The reason why that was going to affect his client was that their land was condemned by eminent domain two years ago. His client had not been able to

do anything with their property because they did not know what they were going to have left.

MR. NURRENBROCK MOVED to continue the item to November 6, 2008, at 1:30 p.m. in New Port Richey.

Chairman Gallagher called on the motion; the vote was unanimous and the motion carried.

P7 CONSENT - Class II, Cypress Creek Pump Station Expansion (IIPR08-035), Preliminary/Construction Site Plan-Tampa Bay Water-Location: On Pump Station Road, east of Ehren Cutoff and south of S.R. 52 (Central Pasco); Section 29, Township 25 S, Range 19 E
Memorandum DR09-004
Recommendation: Approval with conditions
Comm. Dist. 2

Mr. Schlotter explained the request and gave the location of the property. Staff recommended approval.

Ms. Mandy Rice, representing the applicant, was in agreement with Staff's recommendation.

MR. NURRENBROCK MOVED approval of Staff's recommendation.

Chairman Gallagher called on the motion; the vote was unanimous and the motion carried.

NON-VARIANCE PETITIONS
DEVELOPMENT REVIEW SERVICES - DEVELOPMENT REVIEW

P8 Class II, Ashley Glen Boulevard (IIPR07-099), Preliminary/Construction Site Plan and Stormwater Management Plan and Report-Ashley Glen, LLC Location: In Central Pasco County, approximately 1,680 feet east of the Suncoast Parkway and approximately 1,560 feet north of S.R. 54; Sections 19 and 30, Township 26 S, Range 18 E
Memorandum DR09-009
Recommendation: Approval with conditions
Comm. Dist. 2

Mr. Schlotter explained the request and gave the location of the property. Staff recommended approval contingent upon five items to come into compliance.

Chairman Gallagher said Staff recommended approval, but there were several items that had not been submitted.

Ms. Jolly said this was a roadway not a site layout. She explained that the approval for this request shall not be effective until:

a. A unified master access plan for Ashley Glen Boulevard was approved by the Project Management Division (MPUD Master Planned Unit Development Condition No. 21).

b. An agreement for public transit amenities was approved by the BCC (MPUD Master Planned Unit Development Condition No. 28 and DO Condition No. 5.I.8).

c. A signed acknowledgement of Rezoning Petition No. 6745 is returned to the Growth Management Department.

d. A solid waste recycling plan was approved by the Utilities Services Branch (DO Condition No. 5.I.2.d).

e. Payment No. 1, in accordance with DO Condition No. 5.I.3.a, was made.

Mr. Steve Booth, representing the applicant, explained why a number of the items that were mentioned by Ms. Jolly had not been complied with. He agreed with everything in paragraph number twelve, page 4 of 8, with the exception of Tower Road. Tower Road was not to be included, because it was not in the DO and Tower Road was on his client's property. He requested the reference to Tower Road in three different paragraphs be deleted.

MR. NURRENBROCK MOVED to delete the reference to Tower Road in condition number twelve.

Chairman Gallagher called on the motion; the vote was unanimous and the motion carried.

Ms. Jolly said in reference to the last paragraph in condition twelve, they did not want it dedicated at this time, because they wanted the applicant to complete the construction and then dedicate it. The paragraph should read; "All conveyances shall occur after completion of construction and prior to use by the public or within 90 days of the County's request, whichever occurs first."

MR. NURRENBROCK MOVED approval of the revised language as read into the record by Ms. Jolly.

Mr. Booth was in agreement with the revision to condition number twelve.

Chairman Gallagher called on the motion; the vote was unanimous and the motion carried.

Ms. Jolly request that condition number twenty-five be deleted.

MR. PARIKH MOVED to delete condition number 25.

Chairman Gallagher called on the motion; the vote was unanimous and the motion carried.

Mr. Booth stated he was in agreement with the remainder of the requirements.

Mr. Ben Harrill, representing an adjacent landowner, wanted to confirm for the record that the right-of-way, as they had depicted, provided a stub-out to the property line. He said they had given the basic points to Mr. Booth's engineer, which he thought they were in agreement with it.

Mr. Booth said they concurred with Mr. Harrill.

MR. NURRENBROCK MOVED approval of the balance of the agenda item.

Chairman Gallagher called on the motion; the vote was unanimous and the motion carried.

REGULAR
GROWTH MANAGEMENT

R1 Long Lake Ranch Development of Regional Impact - Development Agreement Amendment-Amprop General Investments, LLC, Long Lake Ranch, LLC, Roy Nicholas Geraci, Jr.; Peter A. Geraci; N. Geraci and Co., Inc.; The Roy Nicholas Geraci Jr., Childrens' Trust; and the Peter A. Geraci Childrens' Trust- Location: In south central Pasco County, on the south side of S.R. 54, approximately 1.5 miles west of U.S. 41 and adjacent to the Hillsborough County Line.
Memorandum GM09-01
Recommendation: Approve
Comm. Dist. 2

Mr. Schlotter recommended the item be continued to October 23, at 1:30 p.m. in New Port Richey.

MR. NURRENBROCK MOVED to continue the item to October 23, 2008, at 1:30 p.m. in New Port Richey.

Chairman Gallagher called on the motion; the vote was unanimous and the motion carried.

R2 Long Lake Ranch Development of Regional Impact - Development Order Amendment/Notice of Proposed Change-Amprop General Investments, LLC; Long Lake Ranch, LLC; Roy Nicholas Geraci, Jr.; Peter A. Geraci; N. Geraci and Co., Inc.; The Roy Nicholas Geraci Jr., Childrens' Trust; and the Peter A. Geraci Childrens' Trust-Location: In south central Pasco County, on the south side of S.R. 54, approximately 1.5 miles west of U.S. 41 and adjacent to the Hillsborough County Line;
Memorandum GM09-02
Recommendation: Approve
Comm. Dist. 2

Mr. Schlotter recommended the item be continued to October 23, at 1:30 p.m. in New Port Richey.

MR. NURRENBROCK MOVED to continue the item to October 23, 2008, at 1:30 p.m. in New Port Richey.

Chairman Gallagher called on the motion; the vote was unanimous and the motion carried.

R3 Seven Oaks MPUD Substantial Amendment-SB Associates Limited Partnership-Substantial Amendment to the Seven Oaks MPUD to allow ALFs in Central and North Zones, a Helipad in conjunction with an approved Hospital in Parcel N-5, and various Master Plan Amendments to reflect existing development within the Seven Oaks MPUD located in South Central Pasco County north of SR 56, west of CR 581, south of Wesley Chapel Boulevard, and east and west of I-75.
Memorandum GM09-20
Recommendation: Approval with conditions
Comm. Dist. 2

Mr. Sam Steffey, Growth Management Administrator, read into the record and explained the request that was received from the developer of Seven Oaks, which was to amend the existing Master Development Plan and Conditions of approval. Staff recommended approval of the proposed changes.

Chairman Gallagher suggested they review each change separately so that they could receive public comment on them one at a time.

Mr. Ben Harrill, representing the applicant, highlighted the changes; the changes were:

a. Modification of Note 10 found on the approved MPUD Master Development Plan to reflect a request for a Helipad as an allowable accessory use to the currently approved Hospital (the location of which is limited to Parcel N-5).

Ms. Melissa Cone, Ms. Charlene Madeira, and Mr. John Christenson spoke in opposition. Concerns raised were: the noise from the helicopter; how the helipad was not appropriate for their neighborhood; the height of the hospital; the residents not notified of this meeting; the changing of Parcel S-12A and 12B into two separate parcels; changing the golf course to a nature trail; parcel S-12 being designated as a recreation area; the eight-mile nature trail that residents lost; how the local roads were to have a bike path and sidewalks; there only being one sidewalk and no bike path at the north end of the subdivision; what a local static road was; whether or not the helipad was going to be land based or was going to land on top of the building; and the functional use of the office building in place, which was structured as residential zoning at the time it was built.

Mr. Gallagher indicated he received an email that was sent to the County Commissioner from Joseph Donahue requesting a 90-day extension.

There was discussion between the Board, Staff, and Mr. Harrill regarding the extensive mailing list that went out to individuals in the area of question; the owners that abutted the MPUD were notified of the meeting; the preliminary approval; the helipad being a ground based helipad; and the opposition to leave their email address so they could be informed of new information.

Mr. Harrill stated the height of the hospital was seven stories and the applicant would have to be approved by FDA for the helipad. He did not think the hospital was in the flight path of the airport that was in the area of question. He explained why Parcel 12 had been split into two parcels; the preliminary and construction plans that were approved in 2003; how there was a requirement in the MPUD for collector roads, but there not being a requirement for sidewalks and bike paths on their local roads; the opinion from the County Attorney's Office stating that they were in full compliance of what the County required; and the removing of the golf course that was approved by the Board in 2001. He requested the Board to approve the additional five-feet for the multi-family.

MR. NURRENBROCK MOVED approval of the change from 55-60 feet on the multi-family.

Chairman Gallagher called on the motion; the vote was unanimous and the motion carried.

p. Reconfiguration of Parcel S-8B into S-B1 and S-B2.

Mr. Steffey indicated there was a correction to the above item. It should be "Reconfiguration of Parcel S-8B into S-8B1 and S-8B2."

MR. PARIKH MOVED approval of the correction as read into the record by Mr. Steffey.

Chairman Gallagher called on the motion; the vote was unanimous and the motion carried.

Mr. Harrill explained the changes made to the following items:

j. Reconfiguration of parcels N-1, N-2, and N-4 into N-1, N-1A, N-1B, N-2A, N-2B, N-4A, and N-4B.

k. Division of Parcel S-12 into Parcel S-12A and S-12B and designation of Office as an allowable use in S-12B.

l. Depiction of the reconfiguration of parcels C-3A and C-3B.

m. Depiction of the combination of parcels C-1A and C-1B into a single Parcel (C-1A/C-1B), and reconfigure FDOT Parcel.

n. Reconfiguration of parcels C-4B/S-1A to create a new 1-acre parcel C-3C, the primary use will be Pond. The southern boundary of C-3C will have an access to S.R. 581, which was approved by FDOT on May 20, 2004.

o. Reconfiguration of Parcel S1-B into S-1B through S-1B6

p. Reconfiguration of Parcel S1-B into S-1B1 through S-1B6; (the Parcel were changed to read S-8B into S-8B1 and S-8B2).

Ms. Madeira asked what S12 was zoned.

Mr. Steffey said it was a Master Planned Unit Development designated for recreation.

Mr. Gallagher said the County Attorney was going to look into this matter further and come back before the Board with an answer. He stated what they were trying to do was develop a walkable community.

Mr. Goldstein said condition number twenty-two read "however subsequent to the submittal, all preliminary site plans submitted by the developer have been in conformance with the Land Development Code." He asked if DRC had approved a bike path plan.

Mr. Harrill said yes, and thought there was letter to that effect.

Mr. Goldstein said the way he read the condition was that the developer had to comply with the plan if it was approved by DRC.

Ms. Jolly said it was submitted to the County, but was not processed because the developer elected to come through the Land Development Code.

Mr. Goldstein said in other words, the DRC did not approve a plan.

Ms. Zampetti said that was correct, the PED plan was in compliance with the Code because they chose to opt out and not submit the Plan.

Mr. Goldstein asked if it would be feasible to strike any reference to a DRC approved plan and just state that the developer had to comply with the Code. He explained why he thought this was a misleading condition if DRC had not approved the Plan. He said condition number 21 dealt with the airport and notice to owners who might be in the flight path, and also with compliance with FAA requirements. He asked if there was any thought to imposing anything similar for the helipad.

Ms. Zampetti said there were no distinct flight paths.

Mr. Terry McLaughlin, with Bay Care Health System, stated there were no specific flight patterns for the helicopters. He explained the angle of the descent for the helicopter.

Mr. Goldstein suggested to Staff that they include a condition that the helipad had to comply with any applicable FAA requirements.

MR. NURRENBROCK MOVED approval to add a condition that the helipad had to comply with any applicable FAA requirements.

Chairman Gallagher called on the motion; the vote was unanimous and the motion carried.

Chairman Gallagher suggested condition number 22 to be rewritten to state that the developer shall comply with the Code and delete any references to a plan needing to be approve by DRC or having to be submitted to the County.

Mr. Steffey said Staff would rewrite this to include items 1, 2, and 3 in a logical sentence; this was basically what the applicant had complied with.

MR. NURRENBROCK MOVED approval of the developer's request of 1. a through q with the exception of k.

Chairman Gallagher called on the motion; the vote was unanimous and the motion carried.

Mr. Harrill said condition #12 dealt with intersection improvement for side access points. A couple of them were not correct.

Chairman Gallagher requested a motion to receive and file an email from Joseph E. Donahue III.

MR. PARIKH MOVED to receive and file the email from Joseph E. Donahue III.

Chairman Gallagher called on the motion; the vote was unanimous and the motion carried.

Mr. Harrill showed the changes to condition number fourteen on the overlay and explained. He wanted his client to meet with Mr. Widman to go over condition number fourteen.

Chairman Gallagher stated the changes that Mr. Harrill explained would not be approved at this meeting; a clean copy would be brought back to the Board.

No action was taken on condition number fourteen.

Chairman Gallagher stated the outstanding issues were: the office; sidewalks and bike paths; and condition number fourteen.

MR. NURRENBROCK MOVED approval for the remainder of the agenda item, with the exception of the outstanding issues listed by Chairman Gallagher.

Chairman Gallagher called on the motion; the vote was unanimous and the motion carried.

Chairman Gallagher requested a motion to continue the outstanding issues to November 20, 2008, 1:30 p.m., Dade City.

MR. NURRENBROCK MOVED approval to continue the outstanding issues to November 20, 2008, 1:30 p.m., Dade City.

Chairman Gallagher called on the motion; the vote was unanimous and the motion carried.

R4 Connerton Employment Center Master Planned Unit Development (MPUD) Substantial Amendment -Connerton, LLC-Substantial Amendment to the Connerton Employment Center MPUD to increase Office Entitlements. Located in Central Pasco County, 1.5 miles south of S.R. 52, and abutting U.S. 41 directly to the east.
Memorandum GM09-21
Recommendation: Continuance Requested
Comm. Dist. 2

Mr. Schlotter recommended the item be continued to December 18, at 1:30 p.m. in New Port Richey.

MR. NURRENBROCK MOVED to continue the item to December 18, 2008, at 1:30 p.m. in New Port Richey.

Chairman Gallagher called on the motion; the vote was unanimous and the motion carried.

ZONING/CODE COMPLIANCE

R5 Suncoast Industrial Park MPUD - Rezoning Petition-BBD Softwind, Inc.-To rezone approximately 28.537 acres from A-R Zoning District to an MPUD to allow 390,058 square feet of industrial use. Location: At the southwest corner of Shady Hills Road and Crela Drive, west of and abutting Softwind Lane; Section 25, Township 24 S, Range 17 E
Memorandum ZN08-853
Recommendation: Approval with conditions
Comm. Dist. 2

Ms. Zampetti explained the request and gave the location of the property. Staff recommended approval with conditions.

Mr. Gerald Figurski, representing the applicant, was in agreement with Staff recommendation.

MR. NURRENBROCK MOVED approval of Staff's recommendation.

Chairman Gallagher called on the motion; the vote was unanimous and the motion carried.

R6 Long Lake Ranch MPUD Amendment; Rezoning Petition No. 6821-Peter A. Geraci; Roy Nicholas Geraci, Jr.;Geraci Family Associates, Ltd.; and Long Lake Ranch, LLC-Substantial modification to the previously approved Master Development Plan and conditions of approval.
Location: On the south side of S.R. 54, approximately 1-1/2 miles west of U.S. 41 and adjacent to the Hillsborough County Line; Sections 27, 28, 33, and 34, Township 26 S, Range 18 E
Memorandum ZN08-867
Recommendation: Approval with conditions
Comm. Dist. 2

Mr. Schlotter recommended the item be continued to October 23, at 1:30 p.m. in New Port Richey.

MR. NURRENBROCK MOVED to continue the item to October 23, 2008, at 1:30 p.m. in New Port Richey.

Chairman Gallagher called on the motion; the vote was unanimous and the motion carried.

DEVELOPMENT REVIEW SERVICES

Agenda items R7 through R9 were noted.

R7 NOTED ITEM - Class I, West Pasco Industrial Park, Phase II, Unit 3, Lot 10 (IPR08-010), Preliminary/Construction Site Plan and Stormwater Management Plan and Report-M & M Property Management, LLC-Location: On the north side of Challenger Avenue, approximately 2,433 feet north of S.R. 54, 1,300 feet east of Merchant Avenue, and 675 feet west of Success Drive; Section 29, Township 26 S, Range 17 E
Memorandum DR08-1913
Recommendation: Not Applicable
Comm. Dist. 3

R8 NOTED ITEM - Class I, Meadow Pointe, Tract 8 Retail (IPR07-095), Preliminary/Construction Site Plan and Stormwater Management Plan and Report-OPC Retail Partners, LLC-Location: On the southeast corner of County Line Road and Mansfield Boulevard; Section 33, Township 26 S, Range 20 E
Memorandum DR08-1919
Recommendation: Not Applicable
Comm. Dist. 2

R9 NOTED ITEM - Class I, Walgreen's, Phase 1 (IPR08-038), Preliminary/Construction Site Plan; and Phase 2, Preliminary Site Plan-Pasco Ranch, Inc.-Location: On the northwest corner of Wesley Chapel Boulevard, S.R. 54 and 56 (Cypress Creek Town Center Area); Section 27, Township 26 S, Range 19 E
Memorandum DR08-1934
Recommendation: Not Applicable
Comm. Dist. 2

ADJOURN

The Committee adjourned at 4:26 p.m.

DEVELOPMENT REVIEW COMMITTEE
REGULAR MEETING
OCTOBER 9, 2008

(SEAL)

Prepared By: _____
Elaine H. Hicks, Deputy Clerk